

Kifisias Avenue 1-3, 11523 Athens

Tel: 210 6475 600 • Email: [contact@dpa.gr](mailto:contact@dpa.gr) • [www.dpa.gr](http://www.dpa.gr)

Athens, 08-01-2025

Protocol No.: 80

## DECISION 2/2025

The Hellenic Data Protection Authority convened, upon the invitation of its President, in a meeting via teleconference on 30-04-2024, following a postponement on 26-04-2024, in order to examine the case referred to in the background of this document. Present at the meeting were the President of the Authority, Konstantinos Menoudakos, the regular members Charalampos Anthopoulos, Spyridon Vlachopoulos, Aikaterini Iliadou, Christos Kalloniatis, Konstantinos Lamprinoudakis, and Grigoris Tsolias, as the rapporteur. Also present, without voting rights, were Charis Symeonidou, special scientist – auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/9855/03-09-2022 against the Athens-Macedonian News Agency (AMNA S.A., hereinafter referred to as “AMNA”) and the Hellenic Film Center (“HFC”), A alleges unlawful processing of her personal data. Specifically, according to the complaint, on ... the complainant was informed via email from the Independent Authority for Public Revenue (IAPR) that on ... her details (her VAT number) were searched through the IAPR's online service “Search for Basic Business Registry Data” by AMNA, with which, as she states, she has no professional or economic relationship. Following this, the complainant states that she contacted AMNA requesting information regarding the aforementioned processing of her data, from which it appears that the said entity received basic data from her Tax Registry, without, as she claims, being provided with adequate explanations. Specifically, as detailed in the said complaint, the Legal Service of AMNA informed her that the search of her data was conducted “by mistake,” which, according to the complainant, could not have happened, since the search process includes a security safeguard, an additional step after entering the VAT number, during which the full name and patronymic corresponding to it appear, and the user is required to confirm the search in order to proceed with obtaining the tax registry information. Furthermore, the complainant stated that after her relevant complaint, she was informed that the person responsible for the search was ... of AMNA, B, whose duties include access to taxisnet and the verification of VAT numbers related to contracts of AMNA. The same individual is also employed at the Hellenic Film Center (HFC) and, according to AMNA's response, has related responsibilities for investigating VAT numbers at HFC. However, the complainant argues that at the time of the search, only she held the taxisnet credentials of HFC, as Director ..., while she had not disclosed her VAT number to any employee of HFC.

In the context of investigating the above complaint, the Authority, with document G/EXE/2900/16-11-2022, communicated the relevant documents to the complained entity AMNA S.A. and invited it to express its views on the allegations, clarifying in particular a) whether the complained act of processing the complainant's data was carried out by AMNA, as the data controller (i.e., by persons acting under its supervision) or not (i.e., whether it was carried out by a third party using the taxisnet credentials of the entity, and whether this person acted contrary to the instructions given to them), b) in the case of an affirmative answer to question a), what was the purpose and legal basis of the processing and why the complainant was not informed accordingly, c) in the case of a negative answer to question a)

3

question, or if the search was conducted by mistake, to explain whether the APEMPE handled the incident as a personal data breach in accordance with the GDPR, and what actions were taken after it became aware of the incident.

In its response No. G/EIS/12165/29-11-2022, the accused APEMPE S.A. stated that it is a Public Limited Company of the broader public sector, as defined by the provisions of Law 3429/2005, that the duties of the Data Protection Officer are performed by the appointed collaborator B, who is also appointed as a special collaborator of the non-profit legal entity named "Greek Film Center" (EKK), and that as emerged from the investigation of the incident, following the complaint of the complainant, due to the coincidence of B's two roles, he entered the environment of the AADE application to search for business data, mistakenly using the codes of APEMPE S.A. and in any case without the permission of the Administration, in order to verify the professional rights of the complainant as he had been instructed by the Administration of EKK. In the same response, APEMPE S.A. stated that it does not have the status of data controller regarding the search for the complainant's data, as this processing was not done with its knowledge, but voluntarily by the said collaborator, while the complainant's data remained on the AADE platform and were not recorded by APEMPE S.A. nor disclosed or made accessible by any of its other employees, apart from B who acted in this case as an employee of EKK and for this reason did not assess the incident as a data breach according to the GDPR nor as a violation of its security measures according to Article 32 of the GDPR. In the same document, the accused also submits and refers to the email dated ... to APEMPE S.A. from G, General Director of EKK, in which the latter certifies the following: "...in the context of a contract that the organization has with B, special ... advisor of the Administration of EKK, he was requested to assist in the review of the files for the positions of the directors of the organization, which concern active positions of fixed-term employment and are filled through competitive processes. The review concerned the adequacy of the files in relation to the requested elements of the competition, the competitive process followed in accordance with the applicable legislation on recruitment in public sector entities, as well as the adequacy of the professional rights, provided that these arose from the examined file."

Taking into account the above, the response dated ... from EKK to the complainant (see Relevant 15 of the complaint), according to which "in the context of the audit conducted by the General Director of EKK of the files of all Directors regarding their accuracy and completeness [...] the special advisor B was requested to assist in the above audit. In this context, B legally used the AADE application 'Basic Business Registry Data' according to Article 6 paragraph 1 subparagraphs b', c', d', e' and f' of the GDPR, which is a publicly accessible application of the AADE, providing information regarding publicly available data [...]" as well as the fact that the use of the said AADE application requires the user to log in using TAXISNET codes, (<https://www.aade.gr/epiheiriseis/forologikes-ypiresies/mitroo/anazitisi-basi-kon-stoiheion-mitrooy-epiheiriseon>), the Authority, with its letter G/EXE/3230/12-12-2022 to the Greek Film Center, forwarded a copy of the complaint and the aforementioned views of APEMPE and requested it to express its views on the allegations, clarifying in particular a) what specific audit instruction was given by EKK to B in this case, given that the said advisor did not have the TAXISNET codes of EKK, b) whether the use of the TAXISNET codes of APEMPE S.A. by B was done with the knowledge or upon the relevant instruction of EKK, c) what was the purpose and what was the legal basis for processing the data of those audited by EKK in the context of the above audit, and d) whether and how the audited subjects as data subjects were informed about this processing, in accordance with Articles 13 and 14 of the GDPR.

In its response document G/EIS/12849/27-12-2022, EKK initially replied that indeed in the context of its contract with B, special ... advisor of the administration of EKK, he was requested to assist in the review of the adequacy of the files for the positions of the directors of the entity, which concern active positions of fixed-term employment and are filled through competitive processes.

5

procedures, in accordance with the applicable legislation, and that in the case of the complainant, who as Director ... mentioned in her CV that she held professional rights as a first-class accountant, the audit also included the adequacy of her professional qualifications. The EKK noted that the use of the codes of the APE-MPE by the aforementioned collaborator was not done knowingly or at the behest of the EKK, while the legal basis for the aforementioned processing was invoked:

- Article 24 paragraph 1 subparagraph a of Law 4624/2019 ("The processing of personal data by public authorities for a purpose different from that for which they were collected is permitted when such

processing is necessary for the performance of the duties assigned to them and provided that it is: a) necessary to verify the information provided by the data subject, as there are reasonable grounds to believe that such information is inaccurate.”),

- Article 6 paragraph 1 subparagraph b of the GDPR (processing necessary for the performance of a contract to which the data subject is a party),
- Article 6 paragraph 1 subparagraph c of the GDPR (compliance of the EKK with a legal obligation and specifically with the obligation to verify the legality of degrees, certificates, and other documents of its employees), and
- Article 6 paragraph 1 subparagraph f of the GDPR (processing necessary for the purposes of the legitimate interests pursued by the EKK, as the data controller, and specifically to ensure that the Directors employed by it have the qualifications and professional status required by law for their position).

According to the same response, the EKK informed the complainant in October ... about the above audit and orally and in person requested her to provide the missing documents; however, the audited party did not fully respond, as she did not provide any proof of prior experience, raising suspicion regarding the accuracy and completeness of the information stated in her CV. As a result, a request was made to collaborator B to verify the professional information of the complainant through the VAT number search application of the AADE. Furthermore, the EKK notes that there was no obligation to inform the data subject, due to the applicability of the case in Article 31 paragraph 1 subparagraph d of Law 4624/2019, according to which “The obligation to inform the data subject under Article 13 paragraph 3 of the GDPR does not exist except for the exception referred to in Article 13 paragraph 4 of the GDPR, when the provision of information regarding further processing: d) would impede the establishment, exercise, or support of legal claims and the interest of the data controller not to provide information outweighs the interest of the data subject.” Subsequently, following the G/EIS/12857/28-12-2022 relevant request of the complainant for a copy of the above response, the Authority, with the G/EXE/3428/29-12-2022 transmittal, communicated the aforementioned response document of the EKK to the complainant, and the complainant returned with G/EIS/425 and 426/20-1-2023 supplementary documents in which she argues that the claims of the EKK are contradictory and misleading, while demonstrating that in this case there has been illegal processing of her data by the EKK as the data controller, through B, as the processor. Specifically, the complainant states that the only legitimate purpose for using the AADE platform for VAT number searches is, according to its terms of use, the verification of registry data and the limitation of transactions with false data and documents, and not the purpose claimed by the EKK (verification of professional rights), since the platform does not provide such information. The complainant states that she was never asked to provide proof of prior experience to the EKK, while she submits and invokes a) the email dated ... sent to the address info@gfc.gr, in which she expressed interest in the position of Director ... of the E.K.K., to which is attached the no. ... license to practice as a First-Class Tax Accountant issued by the Economic Chamber of Greece, emphasizing that this license was part of her service file that was available to the Administration and b) the certificate dated ... from EFKA for her prior experience, which she states she had communicated to the E.K.K. from the

7

July 2021 on her own initiative. She also states that if the E.K.K. truly wanted to ascertain whether she maintained the relevant professional rights, it was obliged and could have addressed the economic chamber. According to the complainant, therefore, in the absence of necessity and appropriateness of the relevant search on the platform of the AADE, there was no legal purpose for the processing of her data by the E.K.K., and in reality, this search aimed to find a significant reason for the termination of her employment contract, which occurred after she communicated an extrajudicial request for information regarding the processing of her data. Furthermore, the complainant emphasizes that she was unlawfully not informed about this search, resulting in her being compelled to request a relevant prosecutorial order, and the invocation of both Article 24 and Article 31 of Law 4624/2019 by the E.K.K. is unfounded, as it does not specify either what information the E.K.K. had "reasonable grounds" to believe was incorrect, nor what its claims and interests were that it sought to protect. Finally, the

complainant argues that, beyond the principle of transparency, this unlawful processing violated the security and confidentiality of her data, as the search was conducted using the credentials of a third party (of the APE-MPE), and that she suffered moral damage, as she was forced to seek information about the processing from two involved entities, one of which even terminated her employment contract a few days after her request to it.

Subsequently, the Authority, with its letter G/EKSE/243/30-01-2023, communicated to the E.K.K. the aforementioned supplementary document from the complainant and requested clarification on a) what the exact instructions and orders given by the E.K.K. as the data controller to the data processor B were, regarding the verification of the details of its directors, as well as to provide the contract or other legal act between them as stipulated in Article 28 paragraph 3 of the GDPR, b) given that in its response it invokes more than one legal basis for processing, an action not permitted under the GDPR, the E.K.K. was again called to clarify, according to the principle of accountability (Article 5 paragraph 2 of the GDPR) on which specific legal basis it relied for the search of the complainant's data in this case, adequately documenting its response, and c) finally, the E.K.K. was called to clarify how the information of the data subject in this case under Article 13 of the GDPR would hinder the establishment, exercise, or support of the legal claims of the E.K.K. as the data controller, documenting the claim that the legitimate interest of the E.K.K. not to provide information regarding this processing outweighs the interest of the data subject to be informed, presenting the relevant balancing based on which it reached the above conclusion.

In its response letter G/EIS/1275/20-02-2023, the E.K.K. replied that the aforementioned collaborator, through the company of which he is the legal representative, had undertaken to assist in the financial management of the E.K.K., among other things in the regular updating, completion, and updating of the files of its Directors, and in this context, his assistance was requested in examining these files regarding their incompatibilities. To prove this, it submits the decision No. ... of the Board of Directors of the E.K.K., with which it was decided to request further information regarding the proof of the complainant's prior experience, as well as the contract dated ... (No. 10763/10-12-2021) of the E.K.K. with B, whereby the latter undertook to provide management consulting services. This contract includes Articles 10 and 11, according to which the parties undertake to comply with the obligations arising from the GDPR and Law 4624/2019, as well as the confidentiality of all data, documents, and information they become aware of in the context of the contract. Additionally, the assignment of the contract to the company "B E.E." and the written consent of the E.K.K., as the contracting authority, to the assignment is submitted. Regarding the second question, the E.K.K. responded that the legal basis for the processing of personal data of all its directors was "that of the employment relationship of the Directors of the E.K.K., and concerned the necessary regular check of their file regarding incompatibilities and the updating of these (criminal records, etc.) in accordance with Law 3905/2010, regarding the qualifications and incompatibilities of the Directors of the E.K.K." Finally, regarding the third question, concerning the information provided under Article 13 of the GDPR, the E.K.K. responded that its Directors are aware that the updating of the files...

9

The control of incompatibilities throughout their term is mandatory for the EKK, and in this case, all Directors, including the complainant, were informed of the relevant decision of the Board of Directors, that all updated the required certificates, except for the complainant, who submitted her criminal record and refused to respond to the clarifications requested regarding her parallel employment, denying to provide the relevant EFKA certificate. Thus, the EKK assigned the investigation process as it was obliged to, to B. According to the same response, "the complainant was informed, as evidenced by her service note dated ... to the General Director of the EKK and the email dated ... from the General Director of the EKK to the complainant." The email dated ... from the General Director of the EKK, G, is presented, through which she requested clarification on the source of the complainant's insurance under code 3129 of EFKA, which indicates insurance with an employer other than the EKK, in order to clarify whether since ... when she assumed her duties, she has been employed by another employer apart from the EKK, as well as the certificate dated ... (which is said to have been provided by the

complainant as a "service note" to the EKK) from the financial consulting firm "SOTIRIOS SKAPERDAS AND CO. E.E.," concerning the complainant's employment as an accountant with a fixed-term employment relationship during the periods from ... to ... and from ... to ....

Following the above, the Authority with calls G/EXE/210/12-01-2024, G/EXE/209/12-01-2024, G/EXE/211-12-01-2024, and G/EXE/211-12-01-2024, respectively, summoned the complainant and the accused APE-MPE, as well as the audited E.K.K., B, and the company "B E.E." to a hearing before the Plenary of the Authority on 6/2/2024, in order to present their views on the case. During the session, the complainant was present with her attorney, Georgios Bikos (Bar Association No: ...), on behalf of the Greek Film Center was D, President of the EKK, G, General Director of the EKK, and Alexandra Argyropoulou, lawyer (Bar Association No: ...), on behalf of the company "B E.E." was B and his lawyer Dimitrios Anastasopoulos (Bar Association No: ...), B with his attorney Dimitrios Anastasopoulos (Bar Association No: ...) and on behalf of APE-MPE was Ioannis Giannakakis, Lawyer (Bar Association No: ...), while the Deputy Director of APE-MPE E. was also present. During the session, the parties presented their claims and subsequently were given a deadline and submitted timely, the complainant submitted the document No. G/EIS/1341/20-02-2024 along with the supplementary documents G/EIS/1380/21-02-2024 and G/EIS/1382/21-02-2024, while B submitted the document No. G/EIS/1348/20-02-2024, whereas APE-MPE and EKK did not submit a memorandum.

The complainant, both during the session and with her memorandum, emphasized that the purpose of the processing was not lawful, that the processing was not necessary since her professional license was in her service file, while the documents regarding her parallel employment were requested on ..., that is, after the processing, that the means of processing (searching for her tax identification number through the AADE platform) were inappropriate for the purpose claimed by the EKK, that she was not informed that this processing was to take place and that until today it has not been clarified what exactly the EKK was seeking through B, who used the codes of APE-MPE, intentionally and not by mistake, as he claims. She reiterated that the AADE platform does not provide information regarding professional rights and argued that B did not have the codes of the EKK. According to the complainant, the information she received from the EKK after exercising her right of access was contradictory and she was not given clear and transparent answers from the outset, only after the request and issuance of a prosecutorial order. Regarding the claims made by the EKK to the Authority, the complainant stated that it did not substantiate the balancing of conflicting interests in this case and argued that B unlawfully processed her personal data as an employee of the EKK, because there is no appropriate contract for processing between the EKK and him, but only a general contract for work.

The APE-MPE through its representative at the session argued that no incident of violation has occurred in this case, as no information concerning the complainant has leaked to APE-MPE, that it has taken all necessary technical and organizational measures for the security of

11

personal data being processed and that it bears no liability for the inadvertent use of its codes by B, who happens to be executing the processing for both entities. The EKK stated that it has maintained a collaboration with B as an external consultant since ..., that it has a legal obligation (Law 3905/2010) to check the files of all its directors in order to ensure that they meet the appointment requirements, and that, after information was requested from the complainant and doubts were raised regarding her possible concurrent employment with other entities that constitutes a conflict of interest, a fact she was aware of since ..., the relevant check was assigned to B, who mistakenly used the codes of the APE-MPE that he possessed due to his collaboration with the said entity. It was also noted that it was ultimately diagnosed that the complainant did not meet the requirements for her appointment and thus the EKK proceeded to terminate her contract.

B, during the hearing and in his memorandum, argued the following:

- That he is executing the processing for both of the above entities regarding their financial management, which includes, among other things, payroll, contract implementation, etc. In this context, he gains access to the VAT numbers of the employees of the entities, such as the

complainant.

- That in this case, he indeed inadvertently, without any related intention and for a one-time only occasion, used the APE-MPE codes in order to utilize the AADE platform to search for basic registry information of the complainant, within the framework of an order given to him to check the adequacy of the files. Specifically, B claims that he was assigned to check the adequacy of the professional details and professional status of the complainant to find any potential existence of concurrent employment in accordance with Law 3905/2010 regarding the qualifications and incompatibilities of the employment relationship of the Directors of the E.K.K., following the relevant decision of the Board of Directors of the EKK dated 17-5-2022.

12

The aforementioned processor emphasizes that he had a relevant contract with the data controller (EKK), that he had a legitimate purpose and legal basis for processing the complainant's data, that he did not obtain any information that was not already in the complainant's service file, therefore the complainant did not suffer any damage, that he did not extract any data from the AADE platform and no one else had access to the complainant's data, that this processing therefore does not entail any risk for the data subject and requests that no sanctions be imposed against him, given that he has committed no violation of the relevant legislation. The Authority, after examining the file's elements and having heard the rapporteur and the clarifications from the assistant rapporteur, after thorough discussion

#### CONSIDERED IN ACCORDANCE WITH THE LAW

1. From the provisions of Articles 51 and 55 and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. According to the above findings and from the provisions of Articles 57 paragraph 1 subparagraph (f) of the GDPR and 13 paragraph 1 subparagraph (z) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of A regarding the unlawful processing of her personal data and to exercise, correspondingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

2. With Article 5 paragraph 1 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR), the principles that must govern a processing are established. According to Article 5 paragraph 1 (a) and (f) GDPR, "1. Personal data: (a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), [...] (f) shall be processed in a manner that ensures the

13

appropriate security of personal data, including protection against unauthorized or unlawful processing and accidental loss, destruction, or damage, by using appropriate technical or organizational measures ("integrity and confidentiality"), while as noted in the Preamble of the Regulation, "Personal data should be processed in a manner that ensures appropriate security and confidentiality of personal data, including to prevent unauthorized access to such personal data and to the equipment used for processing them or the use of such personal data and that equipment" (Recital 39 in fine).

Furthermore, according to the accountability principle expressly defined in the second paragraph of the same article and which constitutes a cornerstone of the GDPR, the data controller "is responsible for and is able to demonstrate compliance with paragraph 1 ("accountability")". This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5 paragraph 1.

3. According to Article 6 paragraph 1 of the GDPR "1. Processing shall be lawful only if and to the extent that at least one of the following applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes, b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of

the data subject prior to entering into a contract, c) processing is necessary for compliance with a legal obligation to which the data controller is subject, d) processing is necessary in order to protect the vital interests of the data subject or of another natural person, e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller, f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child.”

4. Regarding the adherence to the principle of transparency, Articles 13 and 14 of the GDPR specifically define the information that must be provided to the data subject by the data controller, both in cases where the data is collected from the data subject (Article 13) and in cases where the data has not been collected from the data subject (Article 14). According to Article 14 paragraphs 1 and 2 of the GDPR, “1. When personal data have not been obtained from the data subject, the data controller shall provide the data subject with the following information: a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) the relevant categories of personal data, e) the recipients or categories of recipients of the personal data, if any, f) where applicable, that the data controller intends to transfer personal data to a recipient in a third country or an international organization and the existence or absence of an adequacy decision by the Commission or, when it comes to the transfers referred to in Article 46 or 47 or in Article 49 paragraph 1 second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy thereof or where they have been made available. 2. In addition to the information referred to in paragraph 1, the data controller shall provide the data subject with the following information that is necessary to ensure fair and transparent processing in relation to the data subject: a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period, b) whether the processing is based on Article 6 paragraph 1.

15

item (f), the legitimate interests pursued by the data controller or by a third party, (g) the existence of the right to request access to and rectification or erasure of personal data or restriction of processing concerning the data subject and the right to object to processing, as well as the right to data portability, (h) when processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal, (i) the right to lodge a complaint with a supervisory authority, (j) the source from which the personal data originate and, where applicable, whether the data originated from publicly accessible sources, (k) the existence of automated decision-making, including profiling, as provided in Article 22(1) and (4) and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.” According to paragraph 3 of the same article, “The data controller shall provide the information referred to in paragraphs 1 and 2: (a) within a reasonable period after the collection of personal data, but at the latest within one month, taking into account the specific circumstances under which the personal data are processed, [...]”, while according to paragraph 4 of this article, “When the data controller intends to further process personal data for a purpose other than that for which the personal data were collected, the data controller shall provide the data subject, prior to such further processing, information on that purpose and any other necessary information, as referred to in paragraph 2.” Finally, paragraph 5 of Article 14 of the GDPR provides for exceptions to the obligation to inform the data subject, including in cases where “...(b) the provision of such information proves impossible or would involve a disproportionate effort [...] or if the obligation referred to in paragraph 1 of this article is likely to make it impossible or seriously impair the achievement of the purposes of that processing. In such cases, the data controller shall take appropriate measures to protect the rights and freedoms and the legitimate interests of the data subject [...]”.

5. To ensure the principle of transparency of processing, Article 12(1) of the GDPR states: "The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication in the context of Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when the information is addressed specifically to children. The information shall be provided in writing or by other means, including, where appropriate, electronically. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means." Furthermore, according to the Guidelines on Transparency (WP260 rev.01), when informing data subjects in accordance with Articles 13-14 of the GDPR, the information provided should be specific and definitive. As noted in §56 of those Guidelines: "In accordance with the principle of accountability, data controllers must demonstrate (and document) the information that the data subject already has, how and when it was received, and that no changes have occurred since then to that information that would render it outdated."

6. Furthermore, according to Article 24(1) of Law 4624/2019, "The processing of personal data by public authorities for a purpose other than that for which they were collected is permitted when such processing is necessary for the performance of the tasks assigned to them and provided that it is: (a) necessary to verify the information provided by the data subject, as there are reasonable grounds to believe that such information is inaccurate; [...]" Additionally, Article 31 of Law 4624/2019 stipulates the

17

as follows: "1. The obligation to inform the data subject in accordance with Article 13 paragraph 3 of the GDPR does not exist except for the exception mentioned in Article 13 paragraph 4 of the GDPR, when the provision of information regarding further processing: a) concerns further processing of data stored in written form, where the data controller addresses the data subject directly, the purpose is compatible with the original purpose of collection according to the GDPR, communication with the data subject is not conducted in digital form, and the data subject's interest in receiving information in the circumstances of the specific case, particularly regarding the context in which the data was collected, is considered not to be high; b) in the case of a public authority, would jeopardize the proper performance of the tasks of the data controller within the meaning of Article 23 paragraph 1 points a) to e) of the GDPR, and the interest of the data controller in not providing the information outweighs the interest of the data subject; c) would jeopardize national or public security and the interest of the data controller in not providing the information outweighs the interest of the data subject; d) would hinder the establishment, exercise, or support of legal claims and the interest of the data controller in not providing information outweighs the interest of the data subject; e) would jeopardize the confidential transmission of data to public authorities. 2. If information is not provided to the data subject in accordance with paragraph 1, the data controller takes appropriate measures to protect the legitimate interests of the data subject, including providing the public with the information referred to in Article 13 paragraphs 1 and 2 of the GDPR in an accurate, transparent, understandable, and easily accessible form, in clear and plain language. The data controller shall state in writing the reasons for which it refrained from providing information. The above paragraphs do not apply in cases d) and e) of the previous paragraph. 3. If notification is not provided in the cases of paragraph 1 due to the existence of a temporary obstacle, the data controller, taking into account the specific circumstances of the processing, must comply with the obligation to inform within a reasonable period after the removal of the obstacle, but no later than within a period of two (2) weeks. 4. ..."

7. In Opinion 1/2020 of the Authority regarding the provisions of Law 4624/2019, the following is noted: "Articles 24-25-26 According to the explanatory report of the law, Articles 24, 25, and 26 provide or create a 'national legal basis' for the processing of personal data for a purpose different from that for which the data was originally collected. In order to justify this choice, the national legislator invokes for Article 24 the provision of Article 6 paragraph 3 GDPR, for Article 25 the provision of Article 6 paragraph 4 GDPR, and for Article 26 the 'explicit legal provision.' The subject matter of the provisions of Articles 24, 25, and 26 of the law is the further processing of personal data, that is, the case of



processing for a purpose other than that for which the data was initially collected, only if the subsequent processing is compatible with the purposes of the initial collection, in accordance with the principle of purpose limitation under Article 5 paragraph 1 point b) GDPR. In this case, a separate legal basis from that which allowed the collection of the data is not required (see Article 6 paragraph 4 and Recital 50 GDPR). Furthermore, from the provisions of Article 6 paragraphs 2 and 3 GDPR, it follows that the national legislator is given the possibility to maintain or establish more specific provisions for the adaptation of the application of the rules regarding processing to comply with cases c) (legal obligation of the data controller) and e) (fulfillment of a duty to the public interest or in the exercise of public authority entrusted to the data controller) of paragraph 1 of Article 6 GDPR, specifying more precisely special requirements for processing and other measures to ensure lawful and fair processing. From the above, it follows that the GDPR does not authorize the national legislator to establish new 'national legal bases,' as mentioned in the explanatory report, but only to specify the legal bases of Article 6 paragraph 1 points c) and e) GDPR, under the conditions and guarantees provided by the provisions of paragraphs 2 and 4 of Article 6."

19

GDPR. Furthermore, from the provision of Article 6(4) GDPR regarding further processing for purposes that are different but compatible with the purposes of the initial collection, it follows that the national legislator is not obliged to take implementing measures for further processing since the GDPR itself establishes the criteria under a) to e) of that paragraph 4. However, even if it is considered that the national legislator was authorized by the GDPR to establish "national legal bases" for the further processing of data under Article 6(4) GDPR, these should only constitute a specification of the legal bases of Article 6(1)(c) and (e) GDPR, must respect the principles of legality of Article 5(1) GDPR and particularly the purpose limitation principle under Article 5(1)(b) GDPR, must be a necessary and proportionate measure in a democratic society to ensure the purposes referred to in Article 23 with the provision of relevant substantive and procedural guarantees, must be legislatively formulated with clarity and precision, and their application must be predictable for individuals subject to them according to the case law of the CJEU and the ECHR (recital 41), and finally, according to recital 50(b) GDPR, in the event of highlighting potential criminal acts or threats to public safety by the data controller and the transmission of the relevant data to the competent authority, this transmission or further processing of personal data must be prohibited if the processing is not compatible with a legal, professional, or other binding obligation of confidentiality. The provisions of Articles 24, 25, and 26 of the law do not meet any of the above substantive and procedural prerequisites and guarantees, in accordance with what has been previously stated regarding Articles 5 and 22 of the law. It is noted that the provisions of Article 25, which provide for the processing of personal data by private entities as long as it is necessary, among other things, for the prevention of threats to national security or public safety (paragraph a) as well as for the prosecution of criminal offenses (paragraph b), despite their wording, from which interpretative doubts arise, cannot be considered as assigning to private entities responsibilities related to the above purposes, given that these responsibilities belong to the core of state authority and it is not constitutionally permissible to assign them to private individuals. It should be emphasized that similar conclusions were reached by the Portuguese DPA with its decision No. 494/2019 regarding the corresponding article of the national law 58/2019, finding a violation of the GDPR, while the Independent Authority for Public Revenue (AADE) in its letter dated 30-9-2019 to the Authority expresses the opinion that the restrictions imposed by Articles 24 and 26 of the law do not find support in the GDPR, that in this way it is deprived of exercising its powers, and that these provisions will also hinder the implementation of the objectives of Law 4623/2019 for digital governance.

#### Articles 31-35

With Articles 31 to 35 of the law, extensive restrictions on the rights of data subjects are provided without specifying particular regulations depending on the case for the issues referred to in paragraph 2 of Article 23 GDPR. The Authority reserves the right to assess, in the exercise of its powers, whether the restrictions applied in each case, based on these provisions of the law, are in accordance with the

GDPR and with the requirements arising from the Charter of Fundamental Rights of the European Union (CFR) and the European Convention on Human Rights (ECHR) (see recital 73 GDPR) and particularly from Articles 7, 8, and 52 CFR and Article 8 ECHR.

8. In the event that the data controller uses a processor, the provisions of Article 28 GDPR apply, according to which: "1. When processing is to be carried out on behalf of a data controller, the data controller shall use only processors that provide sufficient guarantees to implement appropriate technical and organizational measures in such a manner that processing will meet the requirements of this Regulation and ensure the protection of the rights of the data subject. [...] 3. Processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the data controller and sets out the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the data controller." The

21

The contract in question or other legal act must contain at least the specific provisions included in paragraph 3 of Article 28 of the GDPR. Finally, according to Article 29 of the GDPR, "The processor and any person acting under the authority of the controller or of the processor, who has access to personal data, shall process those data only on instructions from the controller, unless he or she is required to do so by Union law or the law of a Member State." As noted in the EDPB Guidelines 07/2020 on the concepts of controller and processor in the GDPR - Version 2.0 (July 7, 2021), "The controller must make decisions regarding both the purposes and the means. However, decisions concerning certain more practical aspects of implementation ('means of minor importance') may be taken by the processor."<sup>1</sup>

9. In this case, from the examination of the file's elements and after the hearing process, the following were established: The EKK assigned the consultant, B, as the processor, the task of checking the adequacy of the files of the Directors of the EKK. In this context, the manner of conducting the audit was left to the discretion of the processor, and thus, the use of the AADE application for checking basic business registry elements was done on his own initiative, as a "means of processing of minor importance" according to the aforementioned Guidelines. The EKK, as the controller, determined the purpose (checking the adequacy of the Directors' files) as well as the essential means of processing, and therefore bears the responsibility for maintaining the fundamental principle of legality, objectivity, and transparency of the processing concerning this processing. However, in violation of the accountability principle (Article 5(2) of the GDPR), the EKK did not sufficiently document: a) the necessity of the processing, as it did not emerge that the complainant was asked for information which she refused to provide, while the Board of Directors' decision cited by the EKK was made on ..., that is, at a time subsequent to the search for the complainant's data through the AADE Platform (...), b) the legal basis for the processing, given that, in response to a related question from the Authority, the EKK invoked multiple legal bases from Article 6(1) of the GDPR, while subsequently, although clarification was requested, it did not specify the legal basis for processing, and c) the transparency of the processing, as it did not emerge that the complainant was informed with all the necessary information required by Article 13 of the GDPR, nor was it established that any case of application of an exception from the notification based on the provisions of Law 4624/2019 cited by the EKK existed. Specifically, the EKK did not substantiate the claim that informing the complainant would hinder the establishment, exercise, or support of its claims or would jeopardize the proper performance of its duties. Based on the above, the controller did not sufficiently document the legality, fairness, and transparency of the processing, as it was obliged to do, resulting in a violation of the provisions set forth in Article 5(1)(a) in conjunction with Article 6(1) of the GDPR. Considering that the violation concerns one (1) data subject and simple personal data, to which the controller had the right of access as the employer of the subject, the Authority assesses the violation as minor (see relevant Recital 148 of the GDPR). For this violation, the Authority deems it appropriate to issue, pursuant to Article 58(2)(b) of the GDPR, a reprimand to the EKK, as the data controller.

Furthermore, from the examination of the case, it emerged that in the context of conducting the

completeness check of the files following a relevant order from the EKK as the data controller, the processor, B, mistakenly used the credentials of a third party on the AADE platform, specifically that of the AMPE-MPE with which he was also collaborating. This fact did not result in the transmission of the complainant's data to AMPE-MPE, as no extraction of information concerning her was made in the systems of AMPE-MPE, nor did the information generated by the search remain available in the AMPE-MPE account on the platform. It is therefore established that the processor executed the processing inadequately, using the credentials of a third legal entity with which the subject is not connected, resulting in the creation of...

23

of disturbance and concern to the complainant regarding the potential leakage of her personal data to unauthorized third parties. Considering the circumstances, the violation is deemed to be of minor significance (see Recital 148 GDPR) and the Authority deems it appropriate to issue a warning to the data processor (now the company "B S.A.") in accordance with Article 58(2)(a) GDPR.

Furthermore, based on the above, no liability of the APE-MPE for the incident has emerged.

Finally, in the context of examining the complaint and in the context of the ex officio examination of the compliance of the EKK as the data controller with the provisions of the GDPR, it was found that the contract of the EKK with B (and now with the company "B S.A.") as the data processor, which the EKK submitted to the Authority, includes Articles 10 and 11, according to which the parties generally undertake to comply with the "obligations arising from the GDPR and Law 4624/2019," as well as the confidentiality of all data, documents, and information they become aware of in the context of the contract. As a result, the contract between the data controller and the data processor does not include all the specific provisions required by Article 28(3) GDPR. For this omission, the Authority considers it appropriate to issue a compliance order to the EKK, as the data controller, in accordance with Article 58(2)(d) GDPR, as specifically set out in the operative part of this decision.

FOR THESE REASONS

THE AUTHORITY

A. Issues to the EKK, as the data controller, a) a reprimand, based on Article 58(2)(b) GDPR, for the violation of the principle of lawfulness and transparency in the processing of the complainant's data and b) an order, based on Article 58(2)(d) GDPR, to enter into an appropriate contract with the company "B S.A." as the data processor, in accordance with the provisions of Article 28(3) GDPR.

B. Issues to the company "B S.A.", as the data processor, a warning, based on Article 58(2)(a) GDPR, to demonstrate the required diligence in the processing of personal data in the future, in order to avoid any unlawful disclosure of data to third natural or legal persons.

C. Dismisses the complaint against APE-MPE as unfounded.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou